

9:00 AM

Line 6

26-CIV-01579 AMPHLETT PROPERTY LLC VS. JIHANE HANNA BECHWATI, ET AL

AMPHLETT PROPERTY LLC
JIHANE HANNA BECHWATI

SCOTT TALKOV
PEIYU (PAULINA) LI

Defendants' Motion to Determine Value and Send Buyout Notice

TENTATIVE RULING:

The Motion to Determine Value and Send Buyout Notice by Defendants Nicolas Bechwati and Jihane Hanna Bechwati and Defendant/Cross-Complainant EPS, Inc. (collectively “Defendants”) is DENIED WITHOUT PREJUDICE in its entirety as premature.

Plaintiff Amphlett Property LLC (“Plaintiff”) brings this action seeking partition of commercial real property located at 301-307 N. Amphlett Blvd., San Mateo, CA, 94401 (“property”). The Complaint alleges that Plaintiff owns an undivided 40% interest as tenants in common with Defendant Nicolas Bechwati, who is alleged to own an undivided 35% interest in the property, and Defendant Jihane Hanna Bechwati, who is alleged to own an undivided 25% interest in the property. The Complaint seeks partition of the property as well as back rent and future rent from EPS, Inc., a tenant at the property.

Defendants bring this Motion asking the court to: (1) appoint either Gregory D. Hansen, MAI, or Clinton Freeman, MAI, as appraiser to determine the fair market value of the property, (2) order Plaintiff to pay 40% of the appraisal costs and set a deadline for their payment within 10 business days of the hearing on this Motion, (3) set a hearing to determine the property’s fair market value following completion of the appraisal, and (4) issue the statutory buyout notice after the valuation hearing. Defendants seek this relief based on the Partition of Real Property Act (“PRPA”). (Code Civ. Proc. §§ 874.311, et seq.) The PRPA applies to real property held in tenancy in common where there is no agreement in a record binding all the cotenants which governs the partition of the property. (Code Civ. Proc., § 874.311, subd. (b).)

However, the PRPA is found in Chapter 10 (Code Civ. Proc., §§ 874.311, et seq.) of Title 10.5, Partition of Real and Personal Property (Code Civ. Proc., §§ 872.010, et seq.). The PRPA supplements the other provisions of Title 10.5. (Code Civ. Proc., § 874.313, subd. (b) [“This chapter supplements the other provisions of this title and, if an action is governed by this chapter, this chapter shall control over any provisions of this title that are inconsistent with this chapter.”].)

Thus, a court shall determine at trial whether a plaintiff has the right to partition. (Code Civ. Proc., § 872.710, subd. (a).) “If the court finds that the plaintiff is entitled to partition, it shall make an interlocutory judgment that determines the interests of the parties in the property and orders the partition of the property and, unless it is to be later determined, the manner of partition.” (Code Civ. Proc., § 872.720, subd. (a).) An interlocutory judgment includes two elements -- a determination of the parties’ interests in the property and an order granting the partition. (*Summers v. Superior Court* (2018) 24 Cal.App.5th 138, 143.) The Court notes that an alternative to trial, is a stipulation for entry of an interlocutory judgment if parties can so agree (however that is not before the Court on this motion)

In any event, the manner of partition is to then be decided when or after the parties’ ownership interests are determined, but not before. (*Ibid.*) There are three methods of partition: (1) a physical division of the property (Code Civ. Proc., §§ 873.210-873.290); (2) a sale of the property and a division of the proceeds (Code Civ. Proc., §§ 873.510-873.850); and (3) a partition by appraisal whereby one cotenant acquires the interests of the other cotenants based on a court ordered and supervised appraisal (Code Civ. Proc., §§ 873.910-873.980). (Miller & Starr, 4 Cal. Real Est. (4th ed.), § 11:15.)

As such, the court must first determine the right to partition at trial (or by stipulation). No interlocutory judgment has been entered at this time. Defendants also have not provided any authority that an interlocutory judgment is not required as a condition precedent to the relief requested. Therefore, this motion is DENIED.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court’s signature a written order consistent with the Court’s ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part “prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling” (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 7

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AMPHLETT PROPERTY LLC
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SCOTT TALKOV
PEIYU (PAULINA) LI

Plaintiff/Cross-Defendant's Anti-SLAPP Motion to Strike First Amended Cross-Complaint

TENTATIVE RULING:

The Anti-SLAPP Motion to Strike First Amended Cross-Complaint (the "Motion") brought by Plaintiff and the other Cross-Defendants (collectively, "Movants" or "Cross-Defendants") is GRANTED as to the first two causes of action of the Cross-Complaint.

Background

Plaintiff Amphlett Property LLC ("Plaintiff") brings this action seeking partition of commercial real property located at 301-307 N. Amphlett Blvd., San Mateo, CA, 94401 ("property"). The Complaint alleges that Plaintiff owns an undivided 40% interest as tenants in common with Defendant Nicolas Bechwati, who is alleged to own an undivided 35% interest in the property, and Defendant Jihane Hanna Bechwati, who is alleged to own an undivided 25% interest in the property. The Complaint seeks partition of the property as well as back rent and future rent from EPS, Inc., a tenant at the property.

Defendant EPS, Inc. ("Tenant"), is owned and operated by Defendant Nicolas Bechwati, and leases or currently occupies the Property, though there has been no new lease, extension, written modification, nor rent adjustment since the written lease governing its tenancy expired in 2017. Defendant Nicolas Bechwati has allegedly ignored Plaintiff's objections to Tenant's nonpayment of rent and payment of below-market rent. The Court notes that Defendant Nicolas Bechwati's ownership and control of both the Property and Tenant creates a fairly clear conflict of interest.

Defendant Tenant cross-complained against Plaintiff/Cross-Defendant Amphlett Property LLC ("Plaintiff"), its member and manager Cross-Defendant Carol Weinbrock, and its other member, Cross-Defendant Jennifer Orman, alleging *inter alia* that Tenant, which performs engineering work for residential, commercial, and government clients, including the City of San Mateo (the "City"), had a right under the written lease to notice and an opportunity to purchase the Property before it could be offered to another. In December 2025, it is alleged that although Plaintiff's agent knew or had reason to know that the City was Tenant's client, Plaintiff's agent contacted the City to inquire about alleged Code violations involving the Property. During the City's involvement with the Property, its employee asked Defendant Nicolas Bechwati whether the Property Tenant's business was being sold. Tenant was forced to expend resources to deal with the City's inspection activity, business disruption, uncertainty regarding its continued operations
